

FREQUENTLY ASKED QUESTIONS (FAQ)

ePPAx SYSTEM		
No	Question	Answer
1.	Is prior approval from JTKSM mandatory to all employers?	Amendments to the Employment Act 1955 which come into effect from 1st January 2023, requires employers to obtain prior approval from the JTKSM before applying foreign workers as per the requirement under Section 60K of Act 265. If an employer who contravenes Section 60K, commits an offence and shall, on conviction, be liable to a fine not exceeding one hundred thousand ringgit or to imprisonment for a term not exceeding five years or to both.
2.	Does employer need to get prior approval from JTKSM if want to employ an expatriate?	Yes. Referring to Section 2 Employment Act 1955, the definition of foreign workers is a non-citizen worker. Thus, approval from JTKSM is a must to all categories of foreign workers including expatriate.
3.	If permit of current expatriate expires soon, do employer need to obtain a prior approval from JTKSM?	No. Prior approval is only mandatory if employer wants to hire a new foreign workers/expatriate. It does not applicable to renewal of work permit.
4.	How to apply a JTKSM approval and which system I should use?	JTKSM approval for expatriate category must be submitted through ePPAx System through link www.eppax.gov.my. For a first-time user, employer must create user ID and fill in all information needed in the system.
5.	Who should make an application?	Application must be made by company director or employer' representative (workers of the company).
6.	If employers have registered in ePPAx System but forget password, what should employers do?	Employers may click on the 'Forgot Password' button to reset a new password. Temporary password will be sent to the registered email. If the problem persist, employer can lodge a complaint through system helpdesk (contact us) or email to eppax@mohr.gov.my.
7.	Which module of the ePPAx system for applying expatriate approval?	Employer must select menu Foreign Worker New Application (Permohonan Baharu Pekerja Bukan Warganegara) > Expatriate Application (Permohonan Pegawai Dagang).
8.	If employer have a few vacancies for a different position, do employer need to make a different application?	- No. Employers are advised to make one (1) application at one time. Approval will be given based on employers/companies not based on vacancy/candidate/position. - Employer can use the same prior approval to process as many as expatriates regardless his/her position if the approval is still valid. - Employers can fill in any position in the vacancy information screen in the ePPAx System.
9.	Salary information in the ePPAx system referring to salary of which categories of workers?	Salary information in the system is referred to starting salary offered to the expatriate and local workers for that position as stated in vacancy information.

10.	If employer skip any information or any screen in the ePPAx system, does it bring any effect to the JTKSM decision?	Employer must fill in all mandatory information to ensure they can proceed to the next screen and process. If the information is not mandatory to fill in, it doesn't bring any effect to the JTKSM decision.
11.	How JTKSM will notify the employers regarding application status?	- Notification to the employers will be sent through ePPAx system to the company registered email. - Employer must ensure only one (1) email address registered in the system and the details is correct to make sure the notification sent successfully to the employer. - Employer also can check application progress and status at system dashboard.
12.	What kind of document is issued for JTKSM approval?	Once the application is approved, and email notification will be sent to the employer (registered email) through ePPAx system. That email notification is the prior approval from JTKSM. This notification email is one of the required documents as stated in Approving Agencies/Regulatory Bodies checklists.
13.	Is there any validity period of JTKSM approval?	The validity period of JTKSM approval is twelve (12) months starting from issuance date (email date).
14.	What is processing time for JTKSM to issue a decision?	The application will be processed within fourteen (14) working days.
15.	Is there any cooling period to re-apply a prior approval if the application is rejected?	For the time being, JTKSM did not set any cooling period for employer to re-apply prior approval in the ePPAx system.
16.	If public university want to employ an expatriate, do employer need to obtain a prior approval from JTKSM?	Employment Act 1955 is applicable to all private sector located in Peninsular Malaysia and Labuan. Thus, public institutions such as public university doesn't need to get approval from JTKSM.
17.	If international company want to establish a Representative Office in Malaysia and hire an expatriate, do employer need to obtain a prior approval from JTKSM?	Yes. Employer still require obtaining an approval from JTKSM. Since the company is yet to establish in Malaysia, employer must fill in company registration no. (no. rujukan SSM) by using MIDA Ref. No. (RERO/2023/00000).
18.	Do employer need to submit any information regarding expatriate to JTKSM?	- Yes. Within 14 days from the date of employment, employer must submit details and information regarding expatriate to nearest JTKSM through Borang PA 1/13 that can be downloaded from jtksm.mohr.gov.my. - Employer also need to submit Borang PA 2/13 to JTKSM within 30 days from the date of termination of expatriate.
19.	Is there any penalty if employer failed to obtain a JTKSM approval?	Yes. If an employer who contravenes Section 60K, commits an offence and shall, on conviction, be liable to a fine not exceeding one hundred thousand ringgit or to imprisonment for a term not exceeding five years or to both.